

§ 636. Originating a proceeding to restore parental rights; service and venue. (a) A proceeding to modify the disposition in order to restore parental rights may be originated by the filing of a petition by the child's attorney, by the agency or individual to whom guardianship and custody of the child had been committed or by the respondent or respondents in the termination of parental rights proceeding. The petition shall be served upon the child's attorney, the agency or individual to whom guardianship and custody of the child had been committed and the respondent or respondents in the termination of parental rights proceeding, as well as the attorney or attorneys who represented the respondent or respondents in the termination of parental rights proceeding. A certified copy of the order committing guardianship and custody shall be attached to the petition.

(b) Upon the filing of a petition under this part, the court may cause a summons to be issued to the child, the agency or individual to whom guardianship and custody of the child had been committed and the respondent or respondents in the termination of parental rights proceeding. The summons shall be served in accordance with section six hundred seventeen of this article, accompanied by a copy of the petition and the certified order of commitment sought to be modified.

(c) The petition shall be filed before the court that exercised jurisdiction over the most recent permanency proceeding involving the child and shall be assigned, wherever practicable, to the family court judge who presided over that proceeding or the proceeding to terminate parental rights.

(d) Wherever practicable, the child shall be represented by the same attorney that represented the child in the most recent permanency proceeding and the parent or parents shall be represented by the same attorney or attorneys who represented the parent or parents in the termination of parental rights proceeding. Where this is not practicable, or where the court grants a request by the attorney or attorneys to be relieved, the court shall immediately assign a new attorney or attorneys, as applicable.